Material Contribution in the Law of Tort

An introductory guide to causation in negligence in England and Wales. How several factors can contribute to injury, and why contribution to damage differs from an increase in risk.

1. One injury may have several causes

Some injuries follow a single event. Others develop through a combination of factors. A claimant does not always have to identify one isolated act which explains everything. The important question is what the defendant's breach actually contributed to the injury.

The ordinary **but-for test** asks whether the same damage would have occurred without the breach. It does **not** require the breach to be the sole cause. Several necessary factors may each satisfy that test. The presence of more than one cause does not automatically make ordinary causation impossible.

> **Material contribution to damage:** a contribution to the actual injury which is more than negligible. **Material increase in risk:** an increase in the likelihood of injury. A greater risk and an actual causal contribution are different propositions. [1, 2]

2. What does “material” mean?

In this setting, **material** means more than negligible; it does not mean the largest contribution, a majority share, or a fixed percentage. **De minimis** describes something too slight to count. Whether a contribution crosses that threshold depends on the evidence and the injury in issue. [1]

Invented example: two sources discharge the same harmful substance into a fish tank. Reliable evidence shows that both discharges combined to cause the fish's illness, and the wrongful discharge made a non-negligible contribution. That is a contribution to actual harm, not merely evidence that the fish might have become ill.

3. Cumulative causes or competing possibilities?

Cumulative causes work together to produce the injury. **Alternative possible causes** are competing explanations: perhaps one caused it, perhaps another. A list of things that could have caused harm does not prove that they all contributed. First identify which kind of problem the evidence supports. [3]

Claimant: person bringing the claim. **Defendant:** person or body sued. **Breach:** failure to meet a legal duty. **Causation:** the connection between that breach and the damage claimed.

Bonnington and cumulative dust

Bonnington Castings Ltd v Wardlaw [1956] AC 613

Mr Wardlaw worked in a foundry and developed pneumoconiosis, a lung disease caused by accumulated silica dust. Dust came from pneumatic hammers and swing grinders. The hammer dust involved no breach on the facts; dust escaped from the grinders because extraction equipment was not kept clear. That breached a safety regulation. [1]

4. The question was not “which source alone?”

The evidence showed a cumulative disease process. The relevant question was whether the dust attributable to the breach materially contributed to the disease, not whether it was the most probable single source. [1]

> **Who won, and why?** Mr Wardlaw won. The House of Lords dismissed the employer's appeal. Dust from the grinders had actually contributed more than negligibly to the accumulation which produced his lung disease. It was not enough that this dust might have contributed; the contribution was proved. [1]

5. The claimant still needs evidence

The claimant had to prove, on the **balance of probabilities**, that the breach caused or materially contributed to the injury. This means more likely than not. Material contribution does not replace proof with sympathy, and proving a breach does not automatically shift the legal burden to the employer. [1]

Invented contrast: medical evidence establishes that two exposures combined to produce an illness. The claimant can prove a meaningful contribution by the wrongful exposure, even though its exact numerical share cannot be calculated. Compare a case where the evidence says only that the illness might have come from either of two unrelated causes. The latter is not proof of a cumulative contribution.

6. Causation and the amount of compensation

Do not assume that every material contribution creates liability for every part of every loss. Where an injury can be divided into separate parts, the extent attributable to the defendant matters. A contribution to one indivisible injury raises a different question. The medical evidence and the way the injury is defined are important. [3]

The historical dust finding does not mean that workers generally accept all workplace risks. The hammer exposure involved no established breach in this case. Employers may owe duties to control workplace hazards; each alleged breach must be examined.

McGhee and increased risk

McGhee v National Coal Board [1973] 1 WLR 1

Mr McGhee developed dermatitis, an inflammatory skin condition, after working in a hot, dusty brick kiln. No actionable breach was established for the ordinary dust exposure during the work. The employer did fail to provide showers, so he cycled home with dust and sweat on his skin. [2]

7. What was the difficulty of proof?

Medical evidence showed that washing would have materially reduced the risk, but could not establish that showers would probably have prevented his dermatitis. The uncertainty concerned how the same brick dust had caused the disease during the working period or the additional unwashed period. [2]

> **Who won, and why?** Mr McGhee won his House of Lords appeal. On the special facts, the material increase in the risk caused by the failure to provide showers was sufficient for the claim. This was not a finding that medical evidence had demonstrated the same cumulative mechanism as in Bonnington. [2]

8. The distinction must remain visible

In **Bonnington**, an actual contribution to the disease was proved. In **McGhee**, the problem was the gap between increased risk and proof that the negligent part of the exposure caused the disease. Later decisions discuss McGhee in the development of the exceptional risk-based approach associated with Fairchild. [2]

It is therefore too broad to say: “If the evidence cannot answer the question, the injured person wins.” Nor does any increase in any medical risk establish liability. Whether a special risk rule applies depends on its legal conditions; it is not a general substitute for proving causation.

9. A practical sequence for an answer

Identify the injury and the breach. Then ask what the evidence shows: did the factors actually combine, or are they merely possible alternatives? If the case concerns contribution to damage, explain why the wrongful factor was more than negligible. If only increased risk is proved, identify the specific legal basis for relying on that risk.

Invented example: a patient suffers an illness which might be caused by an infection or an unrelated drug reaction. Showing that a doctor's error increased the drug-related risk does not itself prove that the drug caused or contributed to this illness. The missing causal link cannot simply be renamed “material contribution”.

McGhee was decided in 1972 and reported in the 1973 volume. Both McGhee and Bonnington were Scottish appeals; their causation principles are important in the law taught here. The case name is McGhee, not “McGee”.

Check your understanding

1. Does the but-for test require the defendant to be the only cause?
Answer: No. Several factors can be necessary causes. Multiple causes do not automatically defeat the test.

2. Does “material” mean more than half of the damage?
Answer: No. In this context it means more than negligible, not a fixed percentage or the largest share.

3. Who won Bonnington, and what was proved?
Answer: Mr Wardlaw. Dust attributable to the employer's breach made an actual, non-negligible contribution to the lung disease.

4. Two factors may each explain the injury, but there is no evidence that they combined. Is that automatically cumulative causation?
Answer: No. Alternative possibilities must not be treated as proved contributions.

5. Who won McGhee, and what was the relevant breach?
Answer: Mr McGhee. The employer failed to provide showers; the resulting material increase in risk sufficed on the special facts.

6. Does a proven increase in risk always establish liability?
Answer: No. Risk is not generally equivalent to actual causation. A specific exceptional rule must be applicable.

7. Evidence shows that a negligent leak worsened an existing wall crack. Does the old crack automatically defeat the claim?
Answer: No. Identify the additional damage and examine whether the leak caused it. Compensation must match the legally attributable loss.

Primary sources

Examples are invented. Sources checked 19 October 2026. The guide explains principles used in England and Wales.

[1] *Bonnington Castings Ltd v Wardlaw* [1956] AC 613, Lord Reid: facts, burden of proof and material contribution. Read judgment (archive copy)

[2] *Fairchild v Glenhaven Funeral Services Ltd* [2002] UKHL 22, paras 17-23: judicial account of *McGhee* and limits of the risk approach. Read judgment

[3] *Williams v Bermuda Hospitals Board* [2016] UKPC 4, paras 27-40: cumulative causes, alternatives and the extent of injury. Privy Council appeal from Bermuda. Read judgment